

SOFTWARE DEVELOPMENT SERVICES AGREEMENT

Effective Date: January 1, 2026

This Software Development Services Agreement ("Agreement") is entered into between:

Client: ABC Technologies Sdn. Bhd., Kuala Lumpur, Malaysia

and

Service Provider: XYZ Software Solutions Pvt. Ltd., Bhubaneswar, India.

1. Purpose

The Client desires to engage the Service Provider to develop, maintain, and support a custom web-based contract intelligence platform. The Service Provider agrees to provide such services under the terms and conditions set forth in this Agreement.

2. Scope of Services

The Service Provider shall perform the following services:

1. Design and development of a web application.
2. Creation of APIs and backend services.
3. Integration with third-party AI services.
4. Testing and deployment of the application.
5. Post-deployment maintenance and support.

The Service Provider shall deliver all agreed functionality according to the project schedule described in Appendix A.

3. Project Timeline

The project shall commence on January 15, 2026.

The expected completion date shall be July 15, 2026.

Any delay caused by the Client's failure to provide necessary information or approvals shall automatically extend the timeline by the duration of such delay.

4. Payment Terms

The Client shall pay the Service Provider a total contract value of USD 50,000.

Payments shall be made according to the following schedule:

- USD 10,000 upon project initiation.
- USD 15,000 upon completion of Phase 1.
- USD 15,000 upon completion of Phase 2.
- USD 10,000 upon final delivery.

Invoices shall be paid within thirty (30) days from receipt.

Late payments shall incur interest at a rate of 1.5% per month.

5. Confidentiality

Both parties acknowledge that they may receive confidential information during the course of this Agreement.

Confidential information includes:

- Business plans
- Financial information
- Customer information
- Product designs
- Technical documentation
- Source code

Neither party shall disclose confidential information to any third party without prior written consent.

The confidentiality obligations shall survive termination of this Agreement for a period of five (5) years.

6. Intellectual Property Rights

All source code, documentation, deliverables, and work products created under this Agreement shall become the exclusive property of the Client upon full payment of all fees due.

The Service Provider retains ownership of any pre-existing intellectual property developed independently before the Effective Date.

The Service Provider grants the Client a perpetual, royalty-free license to use any pre-existing intellectual property incorporated into the deliverables.

7. Data Protection

Both parties agree to comply with all applicable data protection and privacy laws.

Personal data shall be processed only for legitimate business purposes.

Appropriate technical and organizational measures shall be implemented to protect personal data against unauthorized access, loss, or disclosure.

Any data breach affecting personal information shall be reported within seventy-two (72) hours of discovery.

8. Warranties

The Service Provider warrants that:

1. Services will be performed in a professional manner.
2. Deliverables will substantially conform to agreed specifications.
3. The Service Provider has the authority to enter into this Agreement.

Except as expressly stated herein, no additional warranties are provided.

9. Limitation of Liability

Neither party shall be liable for indirect, incidental, special, or consequential damages.

The maximum aggregate liability of either party under this Agreement shall not exceed the total amount paid under this Agreement.

This limitation shall not apply to claims arising from fraud, willful misconduct, or breaches of confidentiality.

10. Indemnification

The Service Provider shall indemnify and hold harmless the Client against third-party claims arising from:

- Intellectual property infringement.
- Gross negligence.
- Willful misconduct.

The Client shall promptly notify the Service Provider of any claim and provide reasonable cooperation in the defense thereof.

11. Termination

Either party may terminate this Agreement upon thirty (30) days written notice.

The Client may terminate immediately if:

- The Service Provider commits a material breach.
- The Service Provider becomes insolvent.
- The Service Provider ceases business operations.

The Service Provider may terminate immediately if the Client fails to pay undisputed invoices for more than sixty (60) days.

Upon termination, the Service Provider shall deliver all completed work products to the Client.

12. Force Majeure

Neither party shall be liable for delays or failures resulting from events beyond reasonable control, including:

- Natural disasters
- War
- Government actions
- Pandemic events
- Cybersecurity incidents

The affected party shall notify the other party as soon as reasonably practicable.

13. Dispute Resolution

Any dispute arising under this Agreement shall first be resolved through good-faith negotiation.

If negotiation fails, the parties agree to mediation.

If mediation is unsuccessful, disputes shall be resolved through binding arbitration in Kuala Lumpur, Malaysia.

The arbitration award shall be final and binding.

14. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Malaysia.

15. Entire Agreement

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements, negotiations, and understandings.

Any amendment must be made in writing and signed by both parties.

Signatures

For ABC Technologies Sdn. Bhd.

Name: Sarah Lim

Title: Chief Executive Officer

Date: January 1, 2026

For XYZ Software Solutions Pvt. Ltd.

Name: Rahul Sharma

Title: Managing Director

Date: January 1, 2026